

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 21-10

ORANGE AVENUE EXPRESS, INC.
Complainant,

v.

HAPAG-LLOYD AG,
Respondent.

MOTION FOR LEAVE TO INTERVENE

COMES NOW, Proposed Intervenor One Banana North America Corp. (“One Banana”), by its undersigned attorneys, and hereby submits this *Motion for Leave to Intervene* in this case pursuant to 46 CFR § 502.68 (c)(2)(i) (permissive intervention). In support thereof, One Banana states as follows.

I. FACTUAL BACKGROUND

One Banana seeks limited intervention pursuant to 46 C.F.R. § 502.68(c)(2)(i) for the limited purpose of using discovery and examination of witnesses because common issues of law and fact exist between One Banana’s interest and the subject matter of this proceeding.

One Banana is a member of a vertically integrated group of companies that distributed fresh bananas from South and Central America to the United States, where it distributed them to various wholesalers and retailers. (Verified Complaint attached hereto as Exhibit A (“Compl.”), ¶¶ 2, 10.) One Banana uses Respondent Hapag-Lloyd A.G. (“Hapag-Lloyd” or “Respondent”) as an ocean carrier to ship hundreds of tons of fresh bananas to ports in the United States, including Port of Long Beach, California. (*Id.* at ¶¶ 11, 12.) One Banana is the owner of the goods and is

typically listed as a consignee on Hapag-Lloyd's Sea Waybills. (*Id.* at ¶ 13.) The bananas are shipped in refrigerated 40-foot-long container, commonly called reefers. (*Id.* at ¶ 15.) On a typical schedule, One Banana shipped five-six reefers of bananas with Hapag-Lloyd weekly.

In September of 2021, One Banana began experiencing problems with Hapag-Lloyd's shipments in the Port of Long Beach. (*Id.* at ¶ 17.) The first signal was that trucking companies started refusing to pick up reefers from Hapag-Lloyd. According to the truckers, the problem was precipitated by Hapag-Lloyd's failure to make adequate locations available to receive empty containers while at the same time not allowing truckers to pick up loaded containers unless they also drop off empty containers. (*Id.* at ¶¶ 17-22.)

For example, some trucking companies reported that they were required to wait for weeks to drop off empty reefers. (*Id.* at ¶ 17.) As a result, many trucking companies refused to deal with Hapag-Lloyd or required that One Banana make a prepayment in excess of \$12,000 per reefer to cover the expected detention charges, which Hapag-Lloyd would refuse to waive according to truckers. (*Id.* at ¶ 20.) Consequently, many One Banana's reefers containing bananas remained in the port in excess of demurrage free time, which resulted in Hapag-Lloyd's imposition of demurrage charges. Additionally, some of the reefers that were picked up by truckers could not have been returned within detention free time due to Hapag-Lloyd's failure to provide locations for the return of empty reefers. As a result, Hapag-Lloyd imposed detention charges against One Banana. (*Id.* at ¶ 23.)

On January 7, 2021, One Banana filed its Verified Complaint with the Federal Maritime Commission against Hapag-Lloyd and its U.S.-based agent Hapag-Lloyd (America) LLC pursuant to Section 11(a) of the Shipping Act, 46 U.S.C. § 41301 seeking reparations for injuries caused to

it by Hapag Lloyd due to Hapag Lloyd's violations of 46 U.S.C. § 41102(c).¹ One Banana's claims are in part based on the same facts and circumstances outlined in Orange Avenue Express Inc.'s ("OAE's") claims in its Complaint in this proceeding. In sum, One Banana's position is that Hapag Lloyd is in violation of 46 U.S.C. § 41102(c) because it has a practice of creating a situation in which it is impossible to return empty refrigerated containers and pick up new ones, and then it charges demurrage for the late pick up it created.

The nature and extent of One Banana's proposed participation in this case is limited to access to the discovery exchanged in this proceeding and the examination of witnesses presented by the existing parties in this proceeding. One Banana seeks no affirmative relief in this proceeding other than that described above.

II. PROCEDURAL HISTORY

This case was commenced on November 19, 2021 by OAE by filing Verified Complaint, Dkt. 1, against Hapag-Lloyd ("OAE Compl."). On December 14, 2021, a Notice of Filing of Complaint was published in the Federal Register. 86 FR 71,066-67 (Dec. 14, 2021). On December 21, 2021, Hapag-Lloyd filed Motion of Extension of Time to File Answer to January 13, 2022. Dkt. 7. The extension was granted on December 29, 2021. As of the time of filing of this motion, no answer has been filed. On January 7, 2022, One Banana commenced its case against Hapag by filing its Verified Complaint.

III. DISCUSSION

The Commission should grant permissive intervention in this case because (i) common issues of both fact and law exist in this matter and in One Banana's Complaint, and (ii) the

¹ As of the time of this Motion the Complaint has not been docketed.

intervention would not unduly delay or broaden the scope of the proceeding, prejudice the adjudication of rights, or be duplicative of the positions of any existing party; in fact, One Banana's participation may reasonably be expected to assist in the development of a sound record in both cases. 46 C.F.R. § 502.68(c)(2)(i).

A. The Common Issues Of Fact And Law Weigh In Favor of Intervention.

Here, both cases share common issues of law: both are private claims alleging violations of 46 U.S.C. § 41102(c) and 46 C.F.R. § 545.5 and involve the same rules regarding Hapag-Lloyd's duty to maintain adequate terminal facilities. *See* 85 F.R. 29638 and 29650; OAE Compl. at ¶ 37; One Banana Compl. at ¶¶ 30-34. Both One Banana and OAE seek reparations as well as cease and desist orders. OAE Compl. at ¶ 46; Compl., 10-11. Both cases also involve the same rules governing the use and return of the equipment.

Both cases also share common factual issues: both focus on the same practices of Hapag-Lloyd at the Port of Long Beach, the rules relating to the handling of reefers and the resulting inability of a party to return empty reefers and pick up newly arrived ones due to circumstances created by Hapag-Lloyd. *See* OAE Compl. at ¶¶ 11, 24; One Banana Compl. at ¶¶ 10-25. Notably, the OAE Complaint attaches email correspondence involving the same trucking companies as those contacted by One Banana. *See* OAE Comp. Ex. A and B and One Banana Compl, Ex. C. Accordingly, the complaints contain material common issues of law and fact that weigh in favor of intervention. *See* Order on OAE's Mot. To Intervene, *FMC v. Hapag-Lloyd AG and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c)*, Docket No. 21-09, Dec. 30, 2021 at 2.

B. The Intervention Would Not Unduly Delay Or Broaden The Scope Of The Proceeding, Prejudice The Adjudication Of Rights, Or Be Duplicative, Favoring Intervention.

The proposed intervention will not delay or broaden these proceedings or prejudice the adjudication of rights because (1) as discussed above, the factual and legal issues are substantially the same in both cases, so Hapag Lloyd would be facing substantially the same questioning and discovery in any event, (2) the scope of One Banana's inquiry is limited to a portion of OAE's inquiry (Hapag Lloyd's practices in connection with 46 U.S.C. § 41102(c), 46 C.F.R. § 565.5, 85 F.R. 29638 and 85 F.R. 29650), and (3) **One Banana seeks only access to the discovery exchanged in this action and the right to participate in depositions that take place in this case.** Based on the information published on the Commission's website, no discovery schedule has been established as of the time of filing of this Motion. The proposed intervention will not be "duplicative of the positions of any existing party" because One Banana's request to intervene is only limited to the use of discovery of facts that are common to both the OAE and One Banana cases. Accordingly, the proposed intervention will not delay or broaden the scope of the proceedings, prejudice any parties' rights, or be duplicative, and the Motion should be granted.

C. One Banana's Participation May Reasonably Be Expected To Assist In The Development Of A Sound Record In Both Cases, Weighing In Favor Of Intervention.

Because of common issues of facts and law, One Banana's participation will allow for the development of a sound and accurate record in these proceedings as well as in One Banana's action. This is particularly true because One Banana seeks to participate only as to discovery of common facts; for example, obtaining information relevant to the availability of locations for the return of empty reefers, which is an integral part of both cases. Such joint discovery would assist in determining a key element of a section 41102(c) claim: whether the actions are occurring on a

normal, customary, and continuous basis. As a consequence, this factor also weighs in favor of intervention.

IV. CONCLUSION

For the foregoing reasons, One Banana respectfully requests that (1) the Commission grant its motion to intervene in these proceedings only to the extent that One Banana will receive all discovery exchanged and will have a right to participate in any depositions that take place, and (2) grant One Banana such other and further orders or relief as the Commission deems just and proper.

January 13, 2022

Respectfully submitted,

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BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO.

ONE BANANA NORTH AMERICA CORP.,
COMPLAINANT

v.

HAPAG-LLOYD AG, and
HAPAG-LLOYD (AMERICA) LLC,
RESPONDENTS.

VERIFIED COMPLAINT

Complainant One Banana North America, Inc. (“Complainant” or “One Banana”), by its undersigned attorneys, files this Verified Complaint against Respondents Hapag-Lloyd (America) LLC and Hapag-Lloyd AG (collectively, “Hapag Lloyd” or “Respondent”) to seek reparation for injuries to One Banana caused by Respondent’s violations of the Shipping Act of 1984, 46 U.S.C. § 40101, *et. seq.* (the “Shipping Act”) as follows:

I. COMPLAINANT

1. Complainant One Banana is a corporation organized under the laws of the State of Florida with a principal place of business at 333 SE 2nd Avenue Suite 2000 Miami, FL 33131, with an email address at info@onebananas.com.

2. One Banana ships fresh bananas from Central and South America to the United States, where it sells them to various wholesalers and retailers. For purposes of its service contracts with Respondent, One Banana was a “shipper” as defined in 46 U.S.C. § 40102(23).

3. The names and addresses of the attorneys representing Complainant are: (1) Tiffany N. Compres, FisherBroyles LLP, 1221 Brickell Avenue, Suite 900, Miami Florida, tiffany.compres@fisherbroyles.com, and (2) Gene M. Burd, FisherBroyles LLP, 1200 G Street NW, Suite 800, Washington, D.C. 20005, gene.burd@fisherbroyles.com.

II. RESPONDENT

4. Upon information and belief, Respondent Hapag-Lloyd AG is a company existing under the laws of the Republic of Germany with its principal place of business at Ballindamm 25, D-20095 Hamburg, Germany, acting in the United States through its agent, Hapag Lloyd (America) LLC, an entity organized under the laws of the State of Delaware, with a principal place of business at 399 Hoes Lane Piscataway, NJ 08854.

5. Hapag Lloyd is and was at all times pertinent to this Complaint a “common carrier” within the meaning of the Shipping Act, 46 U.S.C. § 40102(7), subject to regulation by the Federal Maritime Commission (“FMC”). The email address currently known for Respondent is Tony.DeCiccio@hlag.com.

III. JURISDICTION

6. The FMC has subject-matter jurisdiction over this Complaint pursuant to the Shipping Act of 1984.

7. This Complaint is being filed pursuant to Section 11(a) of the Shipping Act, 46 U.S.C. § 41301. One Banana is seeking reparations for injuries caused to it by Respondents due to their violations of 46 U.S.C. § 41102(c).

8. The FMC has personal jurisdiction over Hapag Lloyd as a “common carrier” as defined in 46 U.S.C. § 40102(7).

9. Respondent's actions alleged herein constitute (1) failures by Respondent to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering the property of One Banana, in violation of 46 U.S.C. § 41102(c) and 46 C.F.R. §§545.4 and 545.5 (2) unreasonable refusal to deal or negotiate with One Banana, in violation of 46 U.S.C. Section 41104(a)(10).

IV. FACTUAL ALLEGATIONS

10. One Banana is part of the AgroAmerica Group of Companies ("AgroAmerica"), along with its sister entities One Banana, Inc. and Bananera Nacional S.A. AgroAmerica is a vertically integrated group of companies with over 13,000 employees. It is one of the largest producers of tropical fruits in Central America, with customers including large U.S. based grocery chains and wholesalers.

11. On or about January 1, 2021, Agro America, through its subsidiary Bananera Nacional S.A., entered into a Service Contract No. S20LCA034¹ (as amended, the "Service Contract") with Hapag Lloyd AG for the carriage of fresh bananas from ports in Guatemala and Ecuador to various ports in the United States, including Long Beach and Los Angeles, California and Seattle, Washington, for the year 2021.²

12. On or about March 5, 2021, the parties amended Service Contract No. S20LCA034 to include an Oakland, California port of destination. The Service Contract remained effective for the entire year 2021.

¹ The Service Contract contained a typo, showing it to be No. S20LCA054, when it was actually number 34, which is correctly reflected in the Amendment dated March 5, 2021.

² The Service Contract is confidential and will be filed separately as Exhibit A to this Complaint.

13. Each shipment under the Service Contract was documented by a Sea Waybill containing Respondent's Terms and Conditions. A copy of the reverse side of the Sea Waybill as published on the Respondent's website is attached hereto as Exhibit B. The relevant Sea Waybills designate One Banana as consignee. One Banana is also a beneficial cargo owner. Accordingly, One Banana is a shipper within the meaning of 46 U.S.C. § 40102(23).

14. One Banana receives the fresh bananas in the United States and delivers them to its customers, typically pursuant to annual contracts.

15. The bananas are typically shipped in 40-foot-long refrigerated containers.³ Pursuant to the terms of the Service Contract, One Banana is allowed 6 days of demurrage free time and 5 days of detention free time. One Banana arranges for trucks to pick up containers at the port within demurrage free time. After the containers are picked up, they are transported to destination warehouses, where they are unloaded, and empty containers are returned to the port to the custody of Hapag Lloyd within detention free time.

16. In order to pick up a full container that arrived, Hapag Lloyd from time to time required that a trucker drop off an empty container. This is a so-called dual transaction or dual appointment requirement. If the consignee does not have a corresponding full pick up at the terminal it may not drop off the empty. Importantly, Hapag Lloyd does not waive demurrage or detention charges even if it does not make drop off locations available.

17. In or about September of 2021, One Banana started receiving information from trucking companies it had engaged to pick up containers from the port that Hapag Lloyd severally limited or even stopped providing return locations for empty containers. In certain instances, One

³ Refrigerated containers are typically referred to as reefers.

Banana was informed that trucks had to wait for **weeks** before a location to return empty containers would become available.

18. According to certain trucking companies, Hapag Lloyd required them to send an email to Hapag Lloyd in order to obtain a daily report of available empty return locations. Initially, Hapag Lloyd would send an automatic response with available return locations. However, the automatic responder was eventually deactivated, and Hapag Lloyd would provide the response at its discretion, if at all.

19. Furthermore, according to the trucking companies, even in cases when Hapag Lloyd would provide return locations for the empty reefers, it would require the trucking companies to make the appointment on a dual transaction basis only. That means that the truckers would be required to pick up a loaded container at the same time the empty reefer is dropped off. Moreover, in some instances, Hapag Lloyd would inform truckers that the return locations are available when, in fact, truckers were unable to make appointment with the terminal reservation system.

20. The foregoing circumstances resulted in a situation in which trucking companies refused or charged exorbitant prices to pick up Hapag Lloyd containers. As an illustration, in some instances, One Banana had to pay in excess of \$7,000 per container for the drayage of reefers from the port to a local warehouse. In another case, when One Banana reached out to a trucking company to arrange for pickup of Hapag Lloyd containers, the company would only do so if One Banana paid \$12,000 to cover anticipated per diem charges that the trucking company would be charged by Hapag Lloyd due to unavailable empty return locations as follows:

Hapag has no return locations for the empties. We have some empties out for a month.

We are in constant communication with them to return the empties unfortunately Hapag has made it extremely difficult to return containers. Hapag return location message sometimes advises “per diem is waived” but they don’t, as they continue to send per diem invoices.

They charge \$400 per day plus an additional \$50 processing fee. So if we keep the container here for 30 days $400 \times 30 = 12,000$

Plus chassis charges \$60 per day and storage charges \$200 per day.

If you like to move forward you will need to pay before the move is made.

See Exhibit C at 3.

21. During the relevant period, One Banana reached out to over 15 trucking companies in an attempt to arrange for the pickup of the reefers. However, almost all of them refused to pick up containers as soon as they learned that the containers were from Hapag Lloyd.

22. As a result of the Hapag Lloyd’s failure to arrange for sufficient locations for the return of empty containers, and despite One Banana’s best efforts, on multiple occasions One Banana was unable to pick up loaded reefers during the free time, and Hapag Lloyd imposed demurrage charges on One Banana despite having itself created the situation that prevented One Banana from picking up the containers. Likewise, when One Banana was unable to find truckers to return empties due to the circumstances Hapag Lloyd itself had created, Hapag Lloyd imposed demurrage charges against One Banana.

23. Hapag Lloyd unfairly profited from the delays caused by its own refusal to accept empty containers because it then charged demurrage for the containers that arrived and could not be retrieved. Likewise, Hapag Lloyd unfairly charged detention fees. The unjust and unreasonable demurrages and detention charges to date total over \$321,523. Further, the delays Hapag Lloyd caused resulted in damage to the perishable cargo of fresh bananas, which deteriorated and were ultimately rejected by the buyer. To date, costs in connection with dumping, inspections, and

transportation of the spoiled fruit, totaled in excess of \$365,947, in addition to the significant cost of the product itself and lost sales, which amounts are still being determined.

24. At the same time, Hapag Lloyd's profiteering reportedly allowed it to increase its profits in 2021 ten-fold. *See* Exhibit D.

25. One Banana notified Hapag Lloyd of the situation in the port and requested that it address the issues. However, Hapag Lloyd ignored One Banana's request. *See* Exhibit E.

A. The Affected Shipments

26. As of the date of this Complaint, about 77 containers over 8 different voyages have been affected. One Banana has incurred in excess of **USD \$687,470.5** in unfair demurrage and detention charges, and costs in connection with dumping, inspection, and transportation of the perished cargo as a result of Hapag Lloyd's actions. These costs do not include the value of the perished cargo itself, which will be provided at a later time. A chart setting forth details of the affected shipments, charges imposed by Hapag Lloyd, and the damages resulting from Hapag Lloyd's actions as estimated to date, is attached hereto as Exhibit F.

27. After failing to receive any response from Hapag Lloyd with respect to its requests for improvement on the situation, on or about November 1, 2021, One Banana, through counsel, sent Hapag Lloyd a demand for reimbursement of the disputed demurrage and detention charges, as well as for compensation for damages incurred due to the violations of the Shipping Act.

28. All conditions precedent, including demand, to this action have occurred, been satisfied, and/or have been waived.

29. One Banana has been forced to retain FisherBroyles LLP to represent it in this action and has agreed to pay the law firm's attorneys' fees. Accordingly, One Banana requests that the Commission award it reasonable attorneys' fees under 46 C.F.R. § 502.254 if it prevails.

V. VIOLATIONS OF THE SHIPPING ACT

COUNT I – VIOLATION OF 46 U.S.C. § 41102(c)

30. One Banana realleges each allegation above as if fully set forth herein.

31. The foregoing continuous, ongoing conduct by Hapag Lloyd in connection with its respective receipt, handling, storage, and delivery of the property of One Banana and, upon information and belief, of other shippers, constitutes failures by Hapag Lloyd to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering the property of One Banana and other shippers, in violation of 46 U.S.C. Section 41102(c).

32. The Commission has adopted an interpretive rule to establish guidance for determining whether practices with respect to demurrage and detention are unjust and unreasonable. *See* Docket No. 19-05, 46 CFR § 545.5 (the “Interpretive Rule”). The Interpretive Rules provides that:

(c)Incentive Principle. In assessing the reasonableness of demurrage and detention practices and regulations, the Commission will consider the extent to which demurrage and detention are serving their intended purposes as financial incentives to promote freight fluidity.

(d) Particular Applications of Incentive Principle. -- (1) Cargo Availability. The Commission may consider in the reasonableness analysis the extent to which demurrage practices and regulations relate demurrage or free time to cargo availability for retrieval.

(2) Empty Container Return. Absent extenuating circumstances, practices and regulations that provide for imposition of detention when it does not serve its incentivizing purposes, such as when empty containers cannot be returned, are likely to be found unreasonable.

33. As the Commission explained:

“cargo availability” or “accessibility” refers to the actual ability of a cargo interest or trucker to retrieve its cargo. Cargo is not available, for instance, if a cargo interest or trucker cannot pick it up because it is in a closed area of a terminal, or if the port is closed. Examples of demurrage practices that are expressly linked to container availability, and which the Commission would weigh positively in the reasonableness analysis, include: (a) starting the free time clock upon container availability as opposed to container discharge from a vessel; (b) public notice of terminal yard closures; and (c) stopping a demurrage or free time clock when a container is rendered unavailable, such as upon notice of a yard or terminal closure or when a trucker cannot get an appointment within a reasonable time of it becoming available.

48 CFR Part 545, Docket 19-05, at 8.

34. The facts asserted in this Complaint establish that Hapag Lloyd’s practices have affected freight fluidity such that One Banana is unable to pick up its containers because it, through the trucking companies it engages, is unable to return empty containers. Furthermore, Hapag Lloyd employs unreasonable and unjust practices with respect to demurrage and detention when it imposes these charges and when it severely limits or fails to provide appointments for the return of empty containers while at the same time requiring trucking companies to make dual transaction appointments, which result in One Banana’s inability to pick up containers within the free time window.

COUNT II – VIOLATION OF 46 U.S.C. § 41104(a)(10)

35. One Banana realleges each allegation above as if fully set forth herein.

36. The foregoing conduct by Hapag Lloyd in the course of negotiating its Service Contract with One Banana and providing service to One Banana pursuant to that Service Contract, which is continuous and ongoing, constitutes unreasonable refusal to deal or negotiate with One Banana, in violation of 46 U.S.C. Section 41104(a)(10).

VI. CAUSATION

37. The foregoing alleged illegal acts of Respondents have directly and proximately injured One Banana because (1) Hapag Lloyd thereby forced One Banana to pay demurrage charges for delays that Hapag Lloyd itself caused, and (2) Hapag Lloyd thereby caused delays in retrieving containers of perishable product, which caused the fresh bananas to rot and ultimately be rejected by the buyer.

VII. COMPLAINANT'S DAMAGES

38. One Banana has been, and continues to be, actually and materially injured by Hapag Lloyd's continuous conduct in violation of the Shipping Act alleged herein.

39. Hapag Lloyd's violations alleged herein are causing direct, proximate, and ongoing financial damages to One Banana in an amount already believed to exceed \$773,000, currently accruing, and to be further demonstrated in this proceeding.

VIII. PRAAYER FOR RELIEF

WHEREFORE, One Banana respectfully requests that the FMC require Hapag Lloyd to answer the charges made in this Verified Complaint and prays for relief from the FMC as follows:

1. An investigation by the FMC of the allegations in this Verified Complaint pursuant to 46 U.S.C. Section 41301(c);
2. An Order, after due investigation pursuant to 46 U.S.C. Sections 41302 and 41303 and a hearing pursuant to 46 U.S.C. Section 41304, finding that Respondents have violated 46 U.S.C. Section 41102(c) in connection with their respective receipt, handling, storage,

and delivery of the property of One Banana, and that Hapag Lloyd has violated 46 U.S.C. Section 41104(a)(10) by unreasonably refusing to deal or negotiate with One Banana;

3. An Order (1) compelling Hapag Lloyd to cease and desist from violation of the Shipping Act and (2) putting in place lawful and reasonable practices to preclude Hapag Lloyd from refusing to accept empty containers and/or to preclude Hapag Lloyd from charging demurrage in connection therewith.
4. An Order requiring Hapag Lloyd to pay One Banana reparations for the unlawful conduct alleged herein in an amount to be proven pursuant to 46 U.S.C. Section 41305, with interest pursuant to 46 U.S.C. Section 41305(a), One Banana's reasonable attorneys' fees as "the prevailing party" pursuant to 46 U.S.C. Section 41305(e), and any other sum the FMC determines to be proper; and
5. Such other and further orders or relief as the FMC deems just and proper.

Dated: January 7, 2022
Washington, D.C.

Respectfully submitted,

FISHERBROYLES LLP

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*Counsel for Complainant
One Banana North America Corp.*

VERIFICATION

I, Robert Adams, hereby verify as follows:

1. I am President of One Banana North America Corp.
2. I am authorized to make this verification on behalf of Claimant One Banana North America Corp.
3. I hereby verify that the facts contained in the foregoing Verified Complaint are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: 1/17/22

A handwritten signature in black ink, appearing to read 'Robert Adams', written over a horizontal line.

Robert Adams, President
One Banana North America Corporation

EXHIBIT A

**CONFIDENTIAL TO
BE FILED
SEPARATELY**

EXHIBIT B

Sea Waybill - Terms and Conditions

1. Definitions

"BIMCO"

means the Baltic and International Maritime Council.

"Carrier"

means the whole or any part of the operations and services undertaken by the carrier in respect of the Goods covered by this Sea Waybill.

"Container"

includes any container, trailer, transportable tank, flat, or any similar article used to consolidate goods and any connected equipment, includes all charges payable to Carrier in accordance with the applicable tariff and this Sea Waybill.

"Goods"

means the whole or any part of the cargo received from the shipper and includes any equipment or Container not supplied by or on behalf of Carrier.

"Hague Rules"

means the International Convention for the Unification of Certain Rules relating to Bills of Lading of 1924 only.

"Hague-Visby Rules"

means the Hague Rules including the Visby amendments of 1968 and the amendments by the Protocol of 1979.

"Merchant"

means the booking party, the shipper and consignee, holder of the Sea Waybill, the person to whom the data has been forwarded as provided for in clause 2 (2) and the receiver of the Goods.

"Servants or Agents"

includes the owners, managers and operators of any Vessel (other than Carrier), master, officers and crew of the Vessel(s), charterers, slot and spot charterers, the Vessel, all underlying carriers, bolsons, direct and indirect subcontractors, stewards, terminal and groupage operators, road and rail transport operators, or any other party employed by or on behalf of Carrier, or whose services or equipment have been used to perform this contract whether in direct contractual privity with Carrier or not.

"US COGSA"

means the US Carriage of Goods by Sea Act 1936.

"Vessel"

means any vessel (including but not limited to a main line vessel, feeder ship, barge or any other means of conveyance by water used for the carriage of the goods under this Sea Waybill.

"VGM"

means the verified gross mass obtained by one of the permissible methods pursuant to ch. VI, part A, reg. 2 paragraph 4 of SOLAS 1974 as amended from time to time and the applicable regulations of the State of the loading port.

2. General Conditions

(1) This Sea Waybill is issued for a contract of Carriage which is not covered by a Bill of Lading or similar document or title.

(2) A signed Sea Waybill is returned to the shipper and a copy of it is applied as an input source document to a computer system for data transmission of particulars as described on page 2 thereof to the country of destination. Upon receipt of the data to be transmitted, Carrier or its agent in the country of destination will forward such data to the consignee and notify party.

(3) Carrier shall not be liable for any loss or damage or delay to or in connection with the Goods or any consequential or indirect damage to Merchant arising unintentionally from erroneous input into the computer system or from wrongful data transmission.

(4) This contract of Carriage shall be subject to German law which would have been compulsory applicable if a Bill of Lading rather than a Sea Waybill had been issued.

(5) The terms and conditions of Carrier's applicable tariff are incorporated herein, including but not limited to the terms and conditions relating to damage and detention. The provisions relevant to the applicable tariff can be acquired from Carrier or its agents upon request. Carrier's standard tariff can be accessed online at www.hapag-loyd.com. In the case of any inconsistency between this Sea Waybill and the applicable tariff, this Sea Waybill shall prevail.

3. Right of Control, Delivery of Goods

(1) The shipper shall be the only party entitled to give Carrier instructions in relation to the contract of Carriage. Shipper shall be entitled to change the name of the consignee at any time up to the consignee claiming delivery of the Goods after their arrival at destination, provided it gives Carrier unambiguous notice in writing, or by some other means acceptable to Carrier, and thereby undertaking to indemnify Carrier against any additional expense caused thereby.

(2) The Goods mentioned on page 2 will be delivered after payment of Freight and other charges to the consignee, or to such person who identifies itself as being a representative of the consignee, and such delivery shall constitute due performance of this contract.

(3) Carrier shall be under no liability for wrong delivery if it can prove that it has exercised reasonable care to ensure that the party claiming delivery is in fact entitled.

4. Sub-Contracting and Indemnity

(1) Carrier shall be entitled to sub-contract on any terms whatsoever the whole or any part of the Carriage, including but not limited to loading, unloading, storing and warehousing.

(2) Merchant hereby agrees that no Servants or Agents are, or shall be deemed to be liable with respect to the Goods or the Carriage as Carrier, before or otherwise, and agrees not to file any claim against any Servants or Agents employed in connection with the Carriage.

(3) If any claim is made against any of the Servants or Agents, Merchant shall indemnify Carrier against all consequences thereof. Without prejudice to the foregoing, all rights, exemptions, defenses, and limitations of and exoneration from liability provided by law or by these Terms and Conditions, including the jurisdiction clause, shall be available to every Servant or Agent and Vessel which shall be entitled to enforce same against Merchant.

(4) The Carrier is not subject to claims of whatsoever nature against other persons chartering space on the carrying Vessel.

5. Carrier's Responsibility

(1) Port-to-Port Shipment

(a) When loss or damage has occurred to the Goods between the time of loading on the Vessel and the time of discharge from the Vessel, the responsibility of Carrier shall be determined in accordance with the law making the Hague Rules applicable to the contract of Carriage. The BIMCO Paramount Clause General shall be incorporated herein.

(b) However, in the event that this Sea Waybill covers a shipment from or to the USA, US COGSA shall govern and apply from loading the Goods on the Vessel until discharge. US COGSA shall also be applicable during all times before the Goods are loaded on or after they are discharged from the Vessel.

(c) Carrier shall not be responsible for any fault of its personnel and of the Vessel's crew (as defined in § 478 German Commercial Code) in cases of damage or loss caused by fire or explosion on board the Vessel or caused by the navigation or management of the Vessel, in the latter case save for damage or loss caused when executing measures which were predominantly taken in the interest of the Goods ("Error in Navigation and Fire Defenses").

(d) Carrier shall not be responsible for any fault of other persons involved in the navigation or management of the Vessel, in particular jobs on board of the Vessel or the crew of a tugboat assisting the Vessel, in cases of damage or loss caused by the navigation or the management of the Vessel, save for damage or loss caused when executing measures which were predominantly taken in the interest of the Goods.

(e) Prior to loading and/or discharge Carrier is not deemed to have custody of the Goods. Carrier is not responsible for acts or omissions of a terminal operator to which the Goods were submitted.

(f) Unless notice of loss or damage is given in writing to Carrier or its agent at the port of discharge before or at the time of the removal of the Goods into the custody of the person entitled to delivery thereof under the contract of Carriage, or, if the loss or damage is not apparent, within three (3) days, such removal shall be prima facie evidence of the delivery by Carrier as described in this Sea Waybill and any loss or damage shall be deemed to have occurred to the Goods shall be deemed to be due to circumstances which are not the responsibility of Carrier. The notice must clearly specify the damage. Notwithstanding the aforesaid, if a Container has been delivered to Merchant, Merchant must prove that the damage to or loss of the Goods did not occur during the period after delivery, when the Container was in the custody of Merchant.

(g) Compensation shall be calculated by reference to the value of the Goods at the place and the time they are delivered to Merchant, or at the place and the time they should have been delivered. For the purpose of determining the extent of Carrier's liability for loss of or damage to the Goods, the sound value of the Goods is agreed to be the invoice value plus Freight and insurance if paid.

(2) Multimodal Transport

(a) If the place of origin or loss of the Goods is known, the responsibility of Carrier is determined by the law which applies to this leg of Carriage except in cases which are governed by Clause 5 (2) (d) below.

(b) If it is established that loss or damage occurred during the port-to-port leg the "Error in Navigation and Fire Defenses" as per Clause 5 (1) (b) apply.

(c) If it is established that loss or damage occurred during the port-to-port leg, Clause 5 (1) (c) shall apply.

(d) In the event that part of the multimodal transport involves a shipment to or from the USA, US COGSA shall govern and apply from loading the Goods on the Vessel until discharge. US COGSA shall also be applicable during all times before loading and/or discharge of the Goods from the Vessel.

(e) With respect to road carriage between countries in Europe liability shall be determined in accordance with the Convention on the International Carriage of Goods by Road (CMR), dated May 19, 1956; and during rail carriage between countries in Europe according to the International Agreement on Railway Transport (CIM), dated February 25, 1961 or any amendments to this Convention or Agreement.

(f) Unless notice of loss or damage is given in writing to Carrier or its agent at the port of discharge before or at the time of the removal of the Goods into the custody of the person entitled to delivery thereof under the contract of Carriage, or, if the loss or damage is not apparent within seven (7) days, such removal shall be prima facie evidence of the delivery by Carrier as described in this Sea Waybill. The notice must clearly specify the damage. Notwithstanding the aforesaid, if a Container has been delivered to Merchant, Merchant must prove that the damage to or loss of the Goods did not occur during the period after delivery, when the Container was in the custody of Merchant.

(g) Compensation shall be calculated by reference to the value of the Goods at the time they were delivered to Carrier for Carriage.

(h) IN THE EVENT THAT THE LAW WHICH IS APPLICABLE UNDER CLAUSE 5 (2) (a) IS NOT MANDATORY AND PROVIDES FOR LIABILITY EXCEEDING 2 SDRs PER KILO, THE MAXIMUM LIABILITY SHALL BE 2 SDRs PER KILO OF THE GROSS WEIGHT OF THE GOODS LOST OR DAMAGED. IN SUCH CASES SPECIAL DRAWING RIGHTS AS DEFINED BY THE INTERNATIONAL MONETARY FUND, THIS SUB-SECTION DOES NOT APPLY IF THE LOSS OR DAMAGE TO THE GOODS OCCURRED ON A SEA LEG.

(i) IF THE STAGE OF THE CARRIAGE DURING WHICH LOSS OR DAMAGE OCCURRED IS NOT KNOWN, CARRIER'S MAXIMUM LIABILITY SHALL IN NO EVENT WHATSOEVER AND HOWEVER ARISING EXCEED 2 SDRs PER KILO OF GROSS WEIGHT OF THE GOODS LOST OR DAMAGED.

(j) CARRIER SHALL NOT BE ENTITLED TO THE BENEFIT OF THE LIMITATION OF LIABILITY PROVIDED FOR IN CLAUSE 5 (2) (b) AND (i) IF IT IS PROVED THAT THE DAMAGE

RESULTED FROM AN ACT OR OMISSION OF CARRIER OR ITS SERVANTS OR AGENTS DONE WITH INTENT TO CAUSE DAMAGE, OR RECKLESSLY AND WITH KNOWLEDGE THAT DAMAGE WOULD PROBABLY RESULT.

(k) Subject to the applicable restrictions in statutory law and international conventions, Carrier shall be liable for loss or damage to the Goods caused by error in navigating or handling the Vessel, including errors caused by the arrangement of a group of tugs or pushers.

(3) Change of Destination by Merchant

In the event that Merchant requests Carrier to deliver the Goods at a port or place other than the port of discharge or the place of delivery originally designated in this Sea Waybill and Carrier in its absolute discretion agrees to such request, such further Carriage will be undertaken on the basis that the Sea Waybill Terms and Conditions are to apply to such Carriage as if the ultimate destination agreed with Merchant had been entered on page 2 of this Sea Waybill as the port of discharge or place of delivery.

6. Time for Suit

In any event, Carrier shall be discharged from all liability in respect of loss of or damage to the Goods, non-delivery, mis-delivery, delay or any other loss or damage connected or related to the Carriage, if the Goods are not claimed within one (1) year after delivery of the Goods or the date when the Goods should have been delivered.

7. Surety Liability Provisions

Hague Rules/Hague-Visby Rules

Without prejudice to Clause 5 (2) hereof, in the event that suit is brought in a court other than that court provided for in Clause 24, and Clause 24 is not enforced by Carrier or the court, then (a) if this Sea Waybill has been issued in a country where the Hague-Visby Rules are compulsorily applicable, Carrier's liability shall not exceed 2 SDRs per kilo of the gross weight or 666.67 SDR per package of the Goods lost or damaged, whichever is higher, or (b) if this Sea Waybill has been issued in a country in which the Hague Rules apply, Carrier's liability shall not exceed GBP 100 per package or unit.

US COGSA

Notwithstanding Clause 7(1), if the Sea Waybill covers a shipment to or from the USA, and suit is brought in a court other than as provided for in Clause 24, and Clause 24 is not enforced by Carrier or the court, then US COGSA shall apply. The provisions of US COGSA shall also govern during all times before the Goods are loaded on and after they are discharged from the Vessel. Carrier's maximum liability in respect to the Goods shall not exceed USD 500 per package or, where the Goods are not packed in packages, USD 500 per customary freight unit unless the nature and value of the Goods has been declared by Merchant and inserted in writing on page 2 of the Sea Waybill and said Merchant shall have paid the applicable ad valorem freight rate set forth in Carrier's tariff.

(3) Shipper's declared value

Merchant agrees and acknowledges that Carrier has no knowledge of the value of the Goods and that compensation higher than that provided for herein may not be claimed unless the nature and value of such Goods have been declared by Merchant, agreed by by Carrier and inserted into the Sea Waybill before shipment. In addition the applicable ad valorem Freight rate as set out in Carrier's tariff must be paid. Any partial loss or damage shall be adjusted pro rata on the basis of such declared value. If the declared value is higher than the actual value, Carrier shall in no event be liable to pay compensation higher than the net invoice value of the Goods plus interest. Any references, when shown on page 2 of the Sea Waybill, to letters of credit, import licenses, sales contracts, invoices or order numbers and/or details of any contract to which Carrier is not a party shall not be regarded as a declaration of value.

(4) Limitation of Liability

It is hereby agreed by Merchant that Carrier qualifies as a person entitled to limit liability under any applicable Act or Act pertaining to limitation of liability for maritime claims, whichever is applicable. Carrier may be the ship-owner, charterer (including a slot- or space charter), manager or operator of the Vessel, or sailor rendering services in connection with salvage operations. If any claims are made against the Servants or Agents, they are entitled to avail themselves of the same limitation available to Carrier.

(5) Delays

(a) Unless expressly agreed, Carrier does not undertake that the Goods shall arrive at the port of discharge or place of delivery at any particular time or to meet any particular market or use, and Carrier shall not be liable for any direct, indirect or consequential loss or damage caused by delay.

(b) If Carrier will nevertheless be considered liable for loss or damage resulting from delay, such liability shall not exceed three (3) times the Freight.

(c) Sub-section (b) shall not apply if the law governing a particular loss or damage resulting from delay provides for a lower limitation amount.

(d) Cl. 7 (5) (a) and (b) shall not apply if the delay was caused by Carrier or its Servants or Agents with the intention to cause damage, or recklessly and with knowledge that such damage would probably result.

(e) Seizures, detentions, immunities, exemptions, limitations and liabilities of whatsoever nature provided for in this Sea Waybill or under statute shall apply in any action against Carrier for loss or damage or delay, whatsoever occurring and whether the action be founded in contract or in tort.

(f) Save as otherwise provided herein, Carrier shall in no circumstances whatsoever be liable for loss or damage by direct, indirect or consequential loss or damage or loss of business or profits, unless it is established that Carrier himself acted with the intent to cause damage, or recklessly and with knowledge that damage would probably result.

8. Shipper-Packaged Containers

If a Container has not been packed by or on behalf of Carrier:

(1) Carrier shall not be liable for loss of or damage to the Goods caused by: (a) the manner in which the Container has been packed; or (b) the unsuitability of the Goods for Carriage in the Container supplied or (c) the unsuitability or defective condition of the Container or the incorrect setting of any refrigeration controls or ventilation settings thereof, provided that, if the Container has been supplied by or on behalf of Carrier, the unsuitability or defective condition would have been apparent upon inspection by Merchant at or prior to the time when the Container was packed, or (d) the Goods that are not of the type intended for Carriage.

(2) The rights, defenses, immunities, exemptions, limitations and liabilities of whatsoever nature provided for in this Sea Waybill or under statute shall apply in any action against Carrier for loss or damage or delay, whatsoever occurring and whether the action be founded in contract or in tort.

(3) Save as otherwise provided herein, Carrier shall in no circumstances whatsoever be liable for loss or damage by direct, indirect or consequential loss or damage or loss of business or profits, unless it is established that Carrier himself acted with the intent to cause damage, or recklessly and with knowledge that damage would probably result.

9. Inspection of Goods

Carrier or any Servant or Agent or any other person authorized by Carrier shall be entitled, but under no obligation, to open any Container or package at any time and to inspect the Goods. If, by order of the authorities at any place, a Container has to be opened for the Goods to be inspected, Carrier will not be liable for any loss or damage incurred as a result of such opening.

(1) Upon inspection, Carrier shall be deemed to have taken all reasonable steps to ensure that the Goods are not of the type intended for Carriage.

(2) Merchant shall indemnify Carrier against any loss, damage, liability or expense whatsoever and whatsoever arising, caused by one or more matters referred to in Clause 8 (1).

(3) With regard to temperature- or atmosphere-controlled Goods, Carrier shall be deemed to have fulfilled its obligations under the contract of Carriage and shall have no liability whatsoever if such Goods are carried in a range of plus or minus 2.5 degrees Celsius with regard to any temperature indicated on page 2 of this Sea Waybill. The "apparent good order and condition" when used in this Sea Waybill with reference to the Goods which require refrigeration does not mean that the Goods when received were free of any defect as being at the temperature on page 2 of this Sea Waybill. Where a temperature is indicated Carrier undertakes that the Container is equipped to maintain the temperature set by Merchant. Merchant remains responsible for the consequences of any temperature irregularities, including but not limited to the Goods being at a higher temperature upon loading the Goods into the Container than that required for the Carriage (hot stuffing) prior to receipt or after delivery by Carrier.

(4) Container with Goods packed by Merchant shall be delivered to Carrier with an intact high security seal in place, and the seal number provided to Carrier by Merchant. In the event the Container is not so sealed, Carrier reserves the right, at Merchant's expense, to return the Container to Merchant for resealing, or to affix a seal.

10. Notification and Delivery

Carrier shall not be obliged to give any notification of the arrival of the Goods to Merchant hereunder.

(1) Merchant shall take delivery of the Goods within the time provided for in Carrier's applicable tariff.

(2) If Merchant fails to do so, Merchant shall either nominate an alternative receiver or accept a return shipment or organize the cargo disposal, failing which Merchant shall indemnify Carrier for all losses arising out of Merchant's failure to remedy the situation. Furthermore, Carrier shall be entitled, without notice, to unpack the Goods if packed in Containers and/or to store the Goods ashore, afloat, in the open or under cover, at the sole risk of Merchant. Such storage shall constitute due delivery hereunder, and thereupon the liability of Carrier in respect of the Goods stored as aforesaid shall wholly cease.

(3) Merchant shall be responsible for the costs of such storage, as well as detention and demurrage.

(4) If Merchant fails to take delivery of the Goods within thirty days of delivery becoming due under Clause 20 (2), or if in the opinion of Carrier they are likely to deteriorate, decay, become worthless or incur charges whether for storage or otherwise in excess of their value, Carrier may, without prejudice to any other rights which it may have against Merchant, without notice, destroy or dispose of the Goods and apply any proceeds of sale in reduction of the sums due to Carrier from Merchant.

(5) Without prejudice to an earlier termination by virtue of law or any other clause of this Sea Waybill the responsibility of Carrier shall cease and the Goods shall be considered to be delivered at their own risk and expense in every respect when taken into the custody of customs or other authorities.

(6) General Average & Salvage General average shall be adjusted in any currency at any place selected by Carrier and according to the York/Antwerp Rules 1994. Any claims and/or disputes relating to general average shall exclusively be subject to the laws and jurisdictions set out in Clause 24. The BIMCO New Jason Clause is hereby expressly incorporated and obtainable from Carrier or its agents upon request.

(7) Both-to-Bleame Collision The BIMCO Both-to-Bleame Collision Clause is hereby incorporated into this Sea Waybill and obtainable from Carrier or its agent upon request.

(8) Validity and Carrier's Data Protection Policy In the event that anything herein contained is inconsistent with any applicable international convention or national law which cannot be departed from by private contract, the provisions hereof shall to the extent of such inconsistency but not further be null and void. Unless otherwise agreed in writing between Merchant and Carrier, the terms and conditions of this Sea Waybill supersede any prior agreements between Merchant and Carrier.

(9) Carrier's Data Protection Policy may be viewed at www.hiag.com.

24. Law and Jurisdiction

Except as otherwise provided specific by herein any claim, dispute, suit or proceeding arising under this Sea Waybill and/or the contract between Carrier and the booking party shall be governed by the law and determined exclusively by the court of law in the Hamburg courts. Carrier shall have the option to file a suit at Merchant's place of business.

Containers packed by Merchant or inside Goods supplied by Merchant, or stamp duty imposed by any country, and shall indemnify Carrier in respect thereof.

(4) If Containers supplied by or on behalf of Carrier are unpacked at Merchant's premises, Merchant is responsible for returning the empty Containers (with any of its dangerous goods placards, labels or markings), with interiors brushed and clean, to the point or place designated by Carrier, its Servants or Agents, within the time prescribed. Should a Container not be returned within the time prescribed in the tariff, Merchant shall be liable for any detention, loss or expenses which may arise from such non-return.

13. ISPS Code

(1) Merchant shall comply with the requirements of the ISPS Code. If Carrier is held liable by any State Authority for any other third party Merchant shall indemnify and hold Carrier harmless from any damages resulting from the violation of the ISPS Code by Merchant.

(2) Merchant undertakes to pay Carrier any costs or expenses whatsoever arising out of or related to security regulations or measures required by the port facility or any relevant authority in accordance with the ISPS Code in relation to Merchant's Goods.

(3) Carrier is entitled to deliver the Vessel to a different port and to unload the Goods there if the authorities in the port of discharge have increased their level of security according to the ISPS Code after the Goods have been loaded.

(4) Merchant undertakes to compensate any costs and expenses suffered by Carrier because of a delay of the Vessel resulting from a violation of the ISPS Code by Merchant.

14. Freight

(1) Freight shall be deemed fully earned on receipt of the Goods by Carrier and shall be paid and nonreturnable in any event.

(2) Freight has been calculated and shall be paid on the basis of particulars furnished by or on behalf of the shipper. If the particulars furnished by or on behalf of the shipper are incorrect, liquidated damages shall be paid to Carrier, in accordance with the applicable tariff.

(3) All Freight shall be paid without any set-off or counterclaim unless the claim is not in dispute or confirmed by a final court decision.

(4) If Merchant fails to pay the Freight when due, it shall be liable for all costs, liquidated damages in accordance with the applicable tariff and in particular interest which accrues until payment.

15. Lien

Carrier shall have a lien on the Goods and any documents relating thereto for all sums payable by Merchant to Carrier under this or any other contract and for general average and/or salvage contributions, to whomsoever due. Carrier may exercise its lien at any time and in any place at its sole discretion, whether the contractual Carriage is completed or not. Carrier's lien shall extend to cover the cost and attorneys' fees of recovering any sums due. Carrier shall have the right to sell the Goods at public or private sale at the expense and without notice to Merchant. If the proceeds of this sale fail to cover the whole amount due, Carrier is entitled to recover the deficit from Merchant.

16. Optional Stowage and Deck Cargo

(1) The Goods may be packed by Carrier in Containers and consolidated with other goods in Containers.

(2) Goods, whether or not packed in Containers, may be carried on deck or under deck without notice to Merchant and Carrier shall not be required to note on the Sea Waybill if any statement of on-deck Carriage is made. If such Goods are carried on deck or under deck, they participate in general average and the Carriage of such Goods is subject to all terms and conditions of the Sea Waybill.

17. Methods and Routes of Carriage

(1) Carrier may at any time and without notice to Merchant: (a) use any means of Carriage or storage whatsoever, including the utilization of railway, road vehicle or inland waterway; (b) transfer the Goods from one conveyance to another, including but not limited to transshipping or carrying on another Vessel or conveyance or by any other means of transport than that named on page 2;

(c) unpack and remove Goods which have been packed into a Container and forward them in a Container or otherwise;

(d) proceed by any route in its discretion (whether or not the nearest or most direct or customary or advertised route), at any speed, and proceed to or stay at any place or port whatsoever, once or more often and in any order;

(e) load or unload the Goods at any place or port (whether or not such port is named on page 2 as the Port of Loading or Port of Discharge) and store the Goods temporarily at any place or port whatsoever, once or more often and in any order;

(f) comply with any orders or recommendations given by any government or authority.

(2) The liberties set out in this Clause 17 may be invoked by Carrier for any purpose whatsoever, whether or not connected with the Carriage of the Goods, including loading or unloading other Goods, bunkering, undergoing repairs, adjusting instruments, picking up or landing any persons. Anything done in accordance with Clause 17 (1) or any delay arising therefrom shall be deemed to be: (i) within the contractual Carriage and shall not be a deviation and (ii) Carrier shall be entitled to full charges and any additional Freight, storage and all other expenses incurred by or on behalf of Carrier, all of which shall be due and owing from Merchant, and Carrier shall have a lien on the Goods for the same.

18. Matters Affecting Performance

If at any time the Carriage is or is likely to be affected by any hindrance, risk, danger, delay, difficulty or disadvantage of any kind including but not limited to labour disruption such as strike and lock-out, war, civil commotion, political unrest, piracy, act of terrorism and threat thereof and however arising (even though the circumstances giving rise to such hindrance, risk, danger, delay, difficulty or disadvantage existed at the time this contract was entered into or when the Goods were received for the Carriage), then Carrier (whether or not the Carriage is commenced) may, at its sole discretion and without prior notice to Merchant, either:

(1) carry the Goods to the place of destination or to a place of delivery, whichever is applicable, by an alternative route to that indicated on page 2 of this Sea Waybill or that which is usual for Goods consigned to that port of discharge or place of delivery and shall be entitled to charge such additional Freight; or

(2) abandon the Carriage of the Goods and store them ashore and/or endeavor to forward them as soon as reasonably possible and shall be entitled to charge such storage costs and additional Freight.

(3) abandon the Carriage of the Goods and place them at Merchant's disposal at any place or port which Carrier may deem safe and convenient, whereupon the responsibility of Carrier in respect of such Goods shall cease. Merchant shall pay any additional costs of the Carriage to, and delivery and storage at, such place or port.

19. Dangerous Goods

(1) No Goods which are or may become dangerous, inflammable or damaging (including radioactive materials) shall be tendered to Carrier for Carriage without its express consent in writing, and without the Container as well as the Goods themselves being distinctly marked on the outside so as to indicate the nature and character of any such Goods and so as to comply with any applicable laws, regulations or requirements. If any such Goods are delivered to Carrier without such written consent and/or marking, or if in the opinion of Carrier the Goods are or may be dangerous, inflammable or damaging in nature, they may at any time be destroyed, disposed of, abandoned, or rendered harmless without compensation to Merchant.

(2) Merchant warrants that the Goods are sufficiently packed in compliance with all laws or regulations and requirements with regard to the nature of the Goods.

(3) Whether or not the nature of the Goods is of the nature of the Goods, Merchant shall indemnify Carrier against all claims, losses, damages or expenses, costs and fees, including attorneys' fees, arising in consequence of the Carriage of such Goods.

(4) Nothing contained in this Clause shall deprive Carrier of any of its rights provided for elsewhere.

20. Notification and Delivery

(1) Carrier shall not be obliged to give any notification of the arrival of the Goods to Merchant hereunder.

(2) Merchant shall take delivery of the Goods within the time provided for in Carrier's applicable tariff.

(3) If Merchant fails to do so, Merchant shall either nominate an alternative receiver or accept a return shipment or organize the cargo disposal, failing which Merchant shall indemnify Carrier for all losses arising out of Merchant's failure to remedy the situation. Furthermore, Carrier shall be entitled, without notice, to unpack the Goods if packed in Containers and/or to store the Goods ashore, afloat, in the open or under cover, at the sole risk of Merchant. Such storage shall constitute due delivery hereunder, and thereupon the liability of Carrier in respect of the Goods stored as aforesaid shall wholly cease.

(4) Merchant shall be responsible for the costs of such storage, as well as detention and demurrage.

(5) Without prejudice to an earlier termination by virtue of law or any other clause of this Sea Waybill the responsibility of Carrier shall cease and the Goods shall be considered to be delivered at their own risk and expense in every respect when taken into the custody of customs or other authorities.

21. General Average & Salvage

General average shall be adjusted in any currency at any place selected by Carrier and according to the York/Antwerp Rules 1994. Any claims and/or disputes relating to general average shall exclusively be subject

EXHIBIT C

Containers from Long Beach Port to Los Angeles

22 mensajes

26 de octubre de 2021, 14:53

Good afternoon!

My name is Jose from OneBananas, we need to pull out 15 containers from Long Beach Port, the thing is I would need your trucks to have a chassis to pick up the containers and take them to a warehouse in Los Angeles.

Please let me know if you could help me with this.

Best regards,

[REDACTED]

[REDACTED]



[REDACTED]

Find out more about how ONE BANANA MAKES A DIFFERENCE at www.onebananas.com

27 de octubre de 2021, 10:30

Hi,

Could you please tell me if you could do that?

Regards,

[El texto citado está oculto]

27 de octubre de 2021, 10:54

[REDACTED]

Are you a current customer?

What is the commodity and weight?

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]



[REDACTED]

27 de octubre de 2021, 11:03

[REDACTED]

Hi [REDACTED],

No, we are not a current customer.

Commodity: 960 Boxes containing Bananas
Weight: 18067.2 KG. NET 19286.4 KG. Gross

Rgds,
[El texto citado está oculto]

What is the steamship line you are using?

Also please provide us with the address on the delivery location to give you an accurate rate.

[El texto citado está oculto]

I believe this is the Vessel.

We would need to know the steamship line is it MCA Hapag?

The reason we need to know is because Hapag containers are extremely difficult to rerun the empties.

[El texto citado está oculto]

Sorry, that was the vessel. In fact, they are with Hapag Lloyd.

I am aware of their problem with empties, but these are with them.

Do you think you could help us?

[El texto citado está oculto]

It's not necessary to pick up all of them at once, but we need to start.

Thanks,
[El texto citado está oculto]

Unfortunately we wont be able to help you with these. Those emp ies can be out for a month and it becomes a huge issue on per diem and storage.

[El texto citado está oculto]

This is urgent for us, we would cover all the charges generated by the problem with returning the empties to HL.

Do you think you could help us?

[El texto citado está oculto]

Good morning

Would you be willing to pick up containers from other shipping lines (Non-Hapag Lloyd)?

Regards,

[El texto citado está oculto]

Hi again A , as we discussed via phone, we would like to know if you could pick up our Non-Hapag Lloyd containers.

We have **14 Containers on the SEALAND MAERSK NORTHWOOD / 141N** with ETA 15-Nov to Long Beach.

We would need you to take them to:

Also we have the **15 containers from Hapag Lloyd** if at all possible.

Please let me know if you need any additional information to proceed.

Best regards,

[El texto citado está oculto]

Rate to is \$850.00

Hapag has no return locations for the empties. We have some empties out for a month.

We are in constant communication with them to return the empties unfortunately Hapag has made it extremally difficult to return containers. Hapag return location message sometimes advises "per diem is waived" but they don't, as they continue to send per diem invoices.

They charge \$400 per day plus an additional \$50 processing fee. So if we keep the container here for 30 days $400 \times 30 = 12,000$

Plus chassis charges \$60 per day and storage charges \$200 per day.

If you like to move forward you will need to pay before the move is made.

See attached credit application. All loads will require payment COD until your credit application is received. Once we receive the credit application we will forward over our w9

***Due to excessive congestion at the port/depots a \$250.00 congestion surcharge will apply.**

Plus Additional accessorial rates below if they apply:

Pre pull	\$125.00
Loaded Storage (Per day)reefer/dry	\$200.00/\$50.00
Customer scale/weights	\$25.00
Redelivery	\$300.00
Temperature recorder (Each)	\$30.00
Air Bags (Each)	\$25.00
Chassis rental (Per day)	\$60.00
Stand By Time @ Terminal (2 free hrs)	\$65.00 per hr.
Stand By Time (2 free hrs)	\$65.00 per hr.
Chassis splits	\$75.00
Off Peak surcharge turn in nights or weekends	\$90.00
SGS Inspection on the dock	\$300.00
TRT Genset Rental	\$200.00

***Customer must claim pier pass.**

***3 Rivers Trucking isn't responsible for demurrage or per diem charges**

\$100 stop off at our yard if we can't return empties and have to bring them to our yard because the steamship line doesn't have return locations or the first receiving day changes on export loads.

[El texto citado está oculto]

Thank you [REDACTED]

I already shared his information with my superiors.

Best regards,

[El texto citado está oculto]

Hey A

We just got information from HL to avoid the detention charges and the delayed returns.

- 1) If returning an empty only. Please have trucker deliver the empty to ICE facility with appointment.
- 2) If returning an empty and picking up a full, trucker must make appointment with the terminal and they should request 2nd shift times (we are told that this is the fastest and with more available time slots). Here our services are calling at PIER A

We are aware how Hapag works we deal with hundreds of Hapag containers. What ever hapag is telling you is not true. The way that it actually works Hapag provides with the below daily.

As you can see the only return location for reefers calls for pier A. pier A requires appointments, so when you try to schedule an appointment at the terminal website, they don't have any appointment available.

We can only help you if you pay in advance.

**Hapag-Lloyd Empty Returns - USLAX - USLGB: Wednesday
10/27/21**

Empty Type / Shift	Transaction:	Wednesday 10/27/21 First Shift	Wednesday 10/27/21 Second Shift	Thursday 10/28/21 First Shift	Thursday 10/28/21 Second Shift	Friday 10/29/21 First Shift	Friday 10/29/21 Second Shift	Saturday 10/30/21 First Shift	Monday 11/01/21 First Shift
Bank Holiday									
Gate Closures									
20' Dry	Single	WBCT	WBCT	None-Per Diem Waived					
	Dual	TRAPAC / YTI	TRAPAC / YTI	TRAPAC / YTI					
40' Standard	Single	PIER A / WBCT	PIER A / WBCT	None-Per Diem Waived					
	Dual	TRAPAC / YTI	TRAPAC / YTI	TRAPAC / YTI					
40' High Cube	Single	WBCT	WBCT	None-Per Diem Waived					
	Dual	TRAPAC / YTI	TRAPAC / YTI	TRAPAC / YTI					
45' Dry*		WBCT / YTI-Dual	YTI-Dual	Per Diem Waived / YTI-Dual					
20' Reefer*		PIER A		PIER A	PIER A				
40' Reefer*		PIER A		PIER A	PIER A				
20' Open / Hard Top*		PIER A		PIER A	PIER A				
40' Open / Hard Top*		PIER A		PIER A	PIER A				
20' Flat Racks*		PIER A		PIER A	PIER A				
40' Flat Racks*		PIER A		PIER A	PIER A				
Comments	Per Diem Waived = No detention charges applicable due to lack of empty return location								
	Pier S - 3400 New Dock St, Long Beach, CA 90802: Open Monday - Friday for Export bookings empty equipment pick up;								
Hapag-Lloyd does not control Marine Terminal Appointment Systems - Check with Terminals on Appointment Availability.									
Per Diem waivers noted by size/type or Bank Holiday (all size/types) on Empty Returns. NO PER DIEM EXEMPTIONS granted for Dual Transaction Gates									
All 20' reefers 2004 and older must be returned to Pier A. 40' reefers 2004 or older must be returned to YTI. Check CSC door plate for year									
Empty Returns SUBJECT TO REVISION. Email LGBEMPTIES@hlag.com for latest returns.									
Questions? Please call 1-888-513-2180 Option 5 then 1 or email LGBEq@hlag.com									

*Special empty returns noted are for both single and dual transactions.

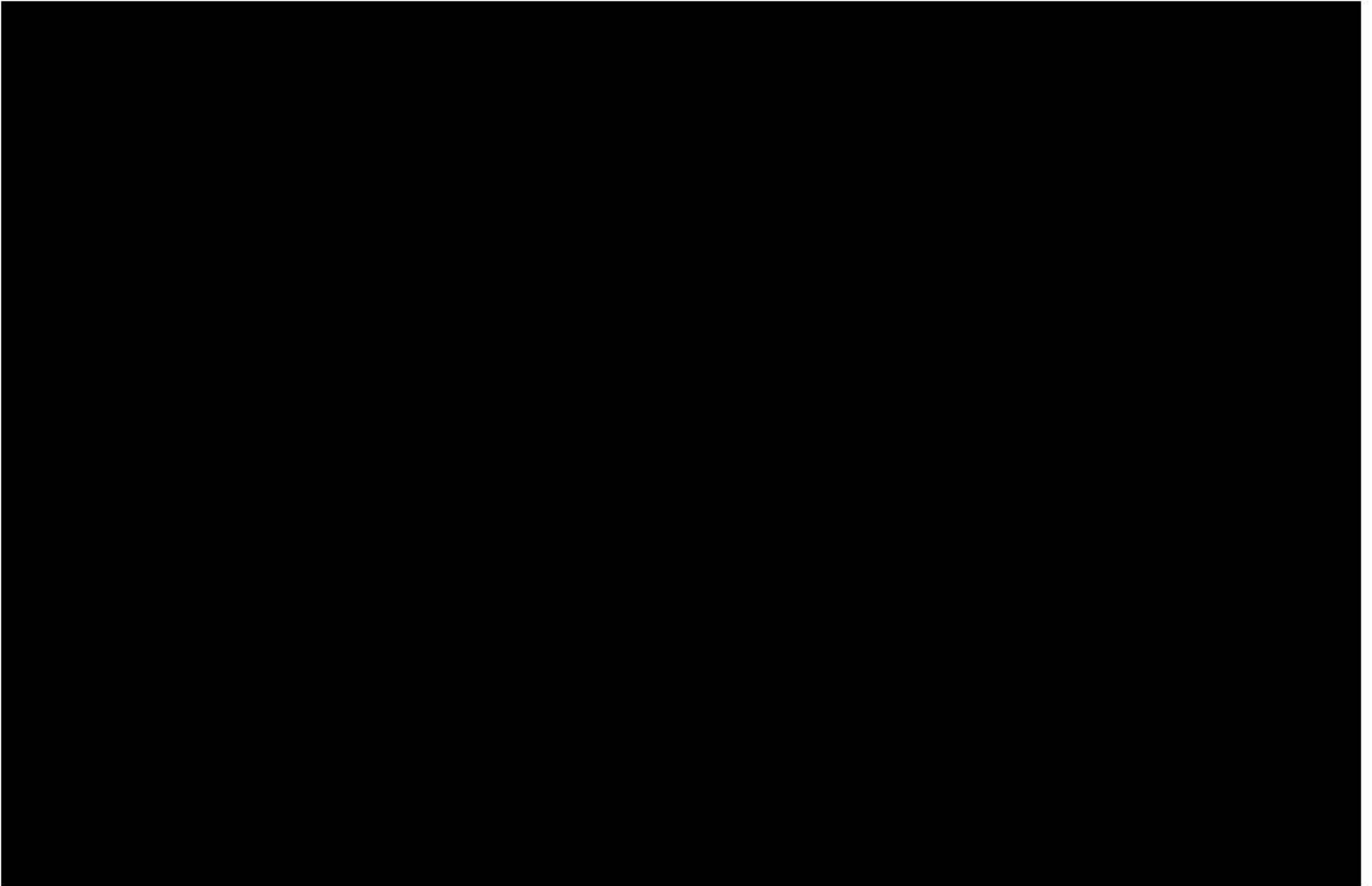
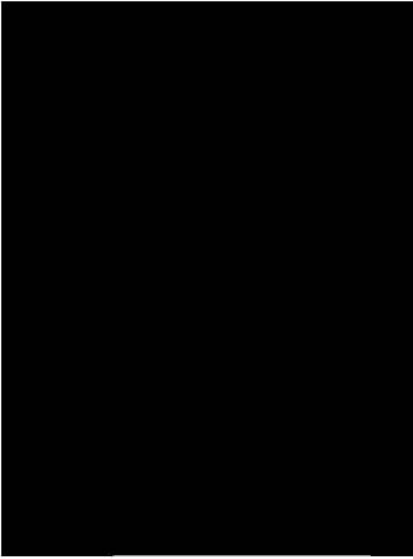


EXHIBIT D



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November 12, 2021

Hapag-Lloyd Profit Soars 10-fold on Record Freight Rates



(Photo: Hapag-Lloyd)

German container shipping line Hapag-Lloyd reported a more than 10-fold surge in nine-month net profit on Friday, citing record freight rates amid scarce transport capacity and rising

transport volumes.

The world's fifth biggest operator said net profit climbed to 5.6 billion euros (\$6.41 billion) in the January-September period, from 538 million euros a year earlier.

It expects earnings momentum to remain at a high level for the rest of the year while operators and customers across the



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EXHIBIT E

[REDACTED]

Subject: Re: Empties in LA - Demurrage Charges
Date: Monday, October 18, 2021 10:29:48 PM

Thanks [REDACTED]. Is [REDACTED] the LGB management?

[REDACTED]

On Oct 18, 2021, at 10:13 PM, [REDACTED]@hlag.com> wrote:

Sorry about that [REDACTED]. Let me get your request over to the LGB management. Reverting.
Thanks

From: [REDACTED]@onebananas.com>
Sent: Monday, October 18, 2021 9:37 PM
To: [REDACTED]@hlag.com>
Cc: [REDACTED]@onebananas.com>; [REDACTED]
[REDACTED]@onebananas.com>
Subject: RE: Empties in LA - Demurrage Charges

Thanks Diana. No one replied, which is sadly the norm.

[REDACTED]

From: [REDACTED]@hlag.com>
Sent: Monday, October 18, 2021 9:07 PM
To: [REDACTED]@onebananas.com
Cc: [REDACTED]@onebananas.com>; [REDACTED]
[REDACTED]@onebananas.com>
Subject: RE: Empties in LA - Demurrage Charges

Good evening J [REDACTED],
Apologies for late reply. Not sure if anyone forward your email to correct parties responsible for LGB. Please let me know if you have received a reply?
If not I'll send your email to the correct contacts. Thank you

Brgds.
[REDACTED]
QSC Intermodal Director

ATL office: [REDACTED]
Mobile: [REDACTED]

Dear Valued Customer:

Please refer to the following link for operational updates that might impact your business. This includes information on truck capacity, terminal / rail congestion and service interruptions

<https://www.hapag-lloyd.com/en/news-insights/news/2021/01/north-america---operational-update.html>

From: [REDACTED] <[REDACTED]@onebananas.com>
Sent: Friday, October 8, 2021 10:19 AM
To: [REDACTED] <[REDACTED]@hlag.com>; [REDACTED] <[REDACTED]@hlag.com>; [REDACTED] <[REDACTED]@hlag.com>
Cc: [REDACTED] <[REDACTED]@onebananas.com>; [REDACTED] <[REDACTED]@onebananas.com>
Subject: Empties in LA - Demurrage Charges
Importance: High

Hapag Lloyd Team,

We all know how bad the empty situation is in LGB and LA. We have 30+ empties out of the port with nowhere to return them. We are having to pay to store these as well. On top of this, we have 30+ full containers of perishable product that is sitting at the port and getting older every day because no carrier will go into the port to get it because they know they will be stuck with containers for weeks. I am trying to get these out asap, but it is a challenge to say the least.

I know there is very little you can do to help return empties but what you can do is eliminate all demurrage charges. I do not see how it is right that we are getting charged demurrage for containers that we cannot even pickup because we cannot return your empties. We just had to pay \$5000 in demurrage to get two containers out and are being charged more. Your team in LA is not willing to extend / eliminate the demurrage so I need to go higher up. I think this should not even be a question, it should be done without hesitation but that is not happening. I think we should be credited any demurrage payments we have been charged the past two weeks along with eliminating further charges until this mess is over.

Let me know your thoughts.

[REDACTED]

[REDACTED]

EXHIBIT F

DEMURRAGE AND DETENTION CHARGES AND ADDITIONAL COSTS AND EXPENSES

Vessel	Arrival	Container	Demurrage	Detention	Inspection Fees	Miscellaneous I	Dump Fees	Logistics	Storage	Total
Long Beach Express 01W29	9/11/2021	HLBU9002138	1,850.00	-	-	-	-	-	700.00	2,550.00
Long Beach Express 01W29	9/11/2021	HLXU8749213	1,850.00	-	-	-	-	-	-	1,850.00
Long Beach Express 01W29	9/11/2021	UACU4779621	1,850.00	-	-	-	-	-	-	1,850.00
Cap Jarvis 127W	9/15/2021	BMOU9765219	-	-	1,000.00	900.00	2,800.00	-	1,300.00	6,000.00
Cap Jarvis 127W	9/15/2021	BMOU9767320	-	-	1,000.00	900.00	2,800.00	588.00	1,500.00	6,788.00
Cap Jarvis 127W	9/15/2021	CRLU1297764	-	-	1,000.00	900.00	2,800.00	-	1,200.00	5,900.00
Cap Jarvis 127W	9/15/2021	CXRU1350800	-	-	1,000.00	900.00	2,800.00	-	700.00	5,400.00
Cap Jarvis 127W	9/15/2021	GESU9385459	-	-	1,000.00	900.00	2,800.00	-	700.00	5,400.00
Cap Jarvis 127W	9/15/2021	GESU9482119	-	-	1,000.00	900.00	2,800.00	-	1,300.00	6,000.00
Cap Jarvis 127W	9/15/2021	GESU9502684	-	-	1,000.00	900.00	4,612.00	588.00	800.00	7,900.00
Cap Jarvis 127W	9/15/2021	HLBU9004418	-	-	1,000.00	900.00	-	-	-	1,900.00
Cap Jarvis 127W	9/15/2021	HLBU9130015	-	-	1,000.00	900.00	2,800.00	588.00	1,000.00	6,288.00
Cap Jarvis 127W	9/15/2021	HLBU9388340	-	-	1,000.00	900.00	2,800.00	-	1,400.00	6,100.00
Cap Jarvis 127W	9/15/2021	HLBU9455324	-	-	1,000.00	900.00	-	-	900.00	2,800.00
Cap Jarvis 127W	9/15/2021	HLBU9503510	-	-	1,000.00	900.00	-	-	300.00	2,200.00
Cap Jarvis 127W	9/15/2021	HLBU9605928	-	-	1,000.00	900.00	-	-	-	1,900.00
Cap Jarvis 127W	9/15/2021	TCLU1122850	-	-	1,000.00	900.00	2,800.00	588.00	1,300.00	6,588.00
Cap Jarvis 127W	9/15/2021	UACU4728780	-	-	1,000.00	900.00	2,800.00	-	1,200.00	5,900.00
Cap Jarvis 127W	9/15/2021	UACU4729214	-	-	1,000.00	900.00	2,800.00	-	1,200.00	5,900.00
Cap Jarvis 127W	9/15/2021	UACU4737971	-	-	1,000.00	900.00	-	588.00	200.00	2,688.00
Balao V311W	9/21/2021	HLBU9171903	-	-	1,000.00	-	3,500.00	750.00	-	5,250.00
Balao V311W	9/21/2021	HLBU9243916	2,000.00	-	1,000.00	-	3,500.00	750.00	-	7,250.00
Balao V311W	9/21/2021	HLBU9269757	-	-	1,000.00	-	3,500.00	750.00	-	5,250.00
Dallas Express 18W31	9/23/2021	HLXU8750554	18,000.00	-	1,000.00	200.00	2,300.00	6,900.00	-	28,400.00
Dallas Express 18W31	9/23/2021	HLXU8755957	18,000.00	-	1,000.00	200.00	2,300.00	6,900.00	-	28,400.00
Dallas Express 18W31	9/23/2021	UACU4777090	18,000.00	-	1,000.00	200.00	2,300.00	6,900.00	-	28,400.00
Rotterdam Express 01W32	10/4/2021	BMOU9221283	8,000.00	1,200.00	1,000.00	-	2,300.00	6,900.00	-	19,400.00
Rotterdam Express 01W32	10/4/2021	CPSU5107458	16,350.00	1,200.00	1,000.00	-	2,300.00	6,900.00	-	27,750.00
Rotterdam Express 01W32	10/4/2021	CPSU5145648	16,350.00	2,400.00	1,000.00	-	2,300.00	6,900.00	-	28,950.00
Rotterdam Express 01W32	10/4/2021	CRLU1273839	3,435.50	1,200.00	1,000.00	-	-	-	-	5,635.50
Rotterdam Express 01W32	10/4/2021	CRLU1377031	14,500.00	1,200.00	1,000.00	-	2,300.00	7,405.00	-	26,405.00
Rotterdam Express 01W32	10/4/2021	CRLU7270919	3,435.50	1,200.00	1,000.00	-	-	-	-	5,635.50
Rotterdam Express 01W32	10/4/2021	GESU9349451	1,850.00	1,200.00	1,000.00	-	-	-	-	4,050.00
Rotterdam Express 01W32	10/4/2021	HLBU9006107	3,350.00	1,200.00	1,000.00	-	-	-	-	5,550.00
Rotterdam Express 01W32	10/4/2021	HLBU9039693	4,980.50	1,200.00	1,000.00	-	-	-	-	7,180.50
Rotterdam Express 01W32	10/4/2021	HLBU9113194	4,965.50	1,200.00	1,000.00	-	-	-	-	7,165.50
Rotterdam Express 01W32	10/4/2021	HLBU9261720	4,895.00	1,200.00	1,000.00	-	-	-	-	7,095.00
Rotterdam Express 01W32	10/4/2021	HLBU9318743	11,000.00	1,200.00	1,000.00	-	2,300.00	6,980.00	-	22,480.00
Rotterdam Express 01W32	10/4/2021	HLBU9383522	4,950.50	1,200.00	1,000.00	-	-	-	-	7,150.50
Rotterdam Express 01W32	10/4/2021	HLBU9445497	4,950.50	1,200.00	1,000.00	-	-	-	-	7,150.50
Rotterdam Express 01W32	10/4/2021	HLBU9514643	4,950.50	1,200.00	1,000.00	-	-	-	-	7,150.50
Rotterdam Express 01W32	10/4/2021	HLXU8720706	16,350.00	1,200.00	1,000.00	-	2,300.00	6,860.00	-	27,710.00
Rotterdam Express 01W32	10/4/2021	HLXU8736582	1,850.00	1,200.00	1,000.00	-	-	-	-	4,050.00
Rotterdam Express 01W32	10/4/2021	HLXU8738245	1,850.00	1,200.00	1,000.00	-	-	-	-	4,050.00
Rotterdam Express 01W32	10/4/2021	HLXU8739452	14,500.00	1,200.00	1,000.00	-	2,300.00	6,900.00	-	25,900.00
Rotterdam Express 01W32	10/4/2021	HLXU8745516	16,350.00	1,200.00	1,000.00	-	2,300.00	7,050.00	-	27,900.00
Rotterdam Express 01W32	10/4/2021	HLXU8759485	1,350.00	1,200.00	1,000.00	-	-	-	-	3,550.00
Rotterdam Express 01W32	10/4/2021	HLXU8761420	1,350.00	1,200.00	1,000.00	-	-	-	-	3,550.00
Rotterdam Express 01W32	10/4/2021	HLXU8761693	1,850.00	1,200.00	1,000.00	-	-	-	-	4,050.00
Rotterdam Express 01W32	10/4/2021	LN XU7552017	16,350.00	1,200.00	1,000.00	-	2,300.00	6,900.00	-	27,750.00
Rotterdam Express 01W32	10/4/2021	TCLU1039155	1,850.00	1,200.00	1,000.00	-	-	-	-	4,050.00
Rotterdam Express 01W32	10/4/2021	TCLU1121710	11,000.00	1,200.00	1,000.00	-	2,300.00	7,050.00	-	22,550.00

DEMURRAGE AND DETENTION CHARGES AND ADDITIONAL COSTS AND EXPENSES

Rotterdam Express 01W32	10/4/2021	TCLU1128817	-	1,200.00	1,000.00	-	-	-	2,200.00
Rotterdam Express 01W32	10/4/2021	UAEU1237049	4,060.00	1,200.00	1,000.00	-	2,300.00	6,900.00	15,460.00
Tokyo Express 19W33	10/19/2021	BMOU9212300	500.00	500.00	300.00	-	2,000.00	1,200.00	4,500.00
Tokyo Express 19W33	10/19/2021	BMOU9217257	500.00	500.00	300.00	-	2,000.00	1,200.00	4,500.00
Tokyo Express 19W33	10/19/2021	BMOU9218490	500.00	500.00	300.00	-	2,000.00	1,200.00	4,500.00
Tokyo Express 19W33	10/19/2021	HLBU9181917	-	500.00	300.00	-	-	-	800.00
Tokyo Express 19W33	10/19/2021	HLBU9442414	-	500.00	300.00	-	2,000.00	1,200.00	4,000.00
Tokyo Express 19W33	10/19/2021	HLBU9500125	-	500.00	300.00	-	2,300.00	2,000.00	5,100.00
Tokyo Express 19W33	10/19/2021	HLBU9705932	-	500.00	300.00	-	2,300.00	1,200.00	4,300.00
Tokyo Express 19W33	10/19/2021	HLXU8747191	-	500.00	300.00	-	2,300.00	1,200.00	4,300.00
Tokyo Express 19W33	10/19/2021	HLXU8773077	-	500.00	300.00	-	2,000.00	1,200.00	4,000.00
Tokyo Express 19W33	10/19/2021	HLXU8789746	-	500.00	300.00	-	2,000.00	1,200.00	4,000.00
Tokyo Express 19W33	10/19/2021	SEGU9420791	-	500.00	300.00	-	2,000.00	1,200.00	4,000.00
Tokyo Express 19W33	10/19/2021	TCLU1020864	500.00	500.00	300.00	-	2,000.00	1,200.00	4,500.00
Tokyo Express 19W33	10/19/2021	TEMU9231182	500.00	500.00	300.00	-	2,000.00	1,200.00	4,500.00
Fos Express 02W35	10/26/2021	HLBU9084624	2,500.00	500.00	300.00	200.00	2,300.00	6,900.00	12,700.00
Fos Express 02W35	10/26/2021	HLBU9422568	1,000.00	500.00	300.00	-	-	-	1,800.00
Fos Express 02W35	10/26/2021	HLBU9625776	1,000.00	500.00	300.00	-	-	-	1,800.00
Fos Express 02W35	10/26/2021	LN XU9655101	3,000.00	500.00	300.00	200.00	2,300.00	6,900.00	13,200.00
Fos Express 02W35	10/26/2021	TEMU9839737	2,500.00	500.00	300.00	200.00	2,300.00	6,900.00	12,700.00
Fos Express 02W35	10/26/2021	UACU4759517	1,000.00	500.00	300.00	200.00	2,300.00	6,900.00	11,200.00
Seattle Express 02W36	11/3/2021	HLBU9246540	1,000.00	-	300.00	-	2,200.00	1,200.00	4,700.00
Seattle Express 02W36	11/3/2021	HLBU9414433	1,000.00	-	300.00	-	2,200.00	1,200.00	4,700.00
Seattle Express 02W36	11/3/2021	HLBU9434316	1,000.00	-	300.00	-	5,000.00	6,200.00	12,500.00
Kobe Express 21W38	11/18/2021	HLBU9555088	1,000.00	1,500.00	300.00	-	-	-	2,800.00

Notes:

Inspection fees Fees paid to a third party inspection company
Miscellaneous Inspection Services Fee \$450 to get the container ready for inspection and \$450 drayage from the dock to dumpster

**BEFORE THE
FEDERAL MARITIME COMMISSION**

ORANGE AVENUE EXPRESS, INC.	)	
	)	
<i>Complainant,</i>	)	
	)	
v.	)	
	)	DOCKET NO. 21-10
HAPAG-LLOYD AG	)	
	)	
<i>Respondent.</i>	)	
	)	

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon all parties of record by emailing a copy to each such person as set forth in 46 CFR § 502.114 as follows:

Counsel for Complainant Orange Avenue Express, Inc.:

Stephen M. Uthoff (suthoff@uthofflaw.com)
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COZEN O'CONNOR
1200 Nineteenth Street, NW, Suite 300
Washington, DC 20036
(202) 463-2504

Dated at Washington D.C.,
this 13th day of January 2022



Gene M. Burd (DC Bar No. 1004330)
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Washington, D.C. 20005
FisherBroyles LLP